

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

DECLARATION OF J. WYATT FORE

1. My name is J. Wyatt Fore. I am an attorney in the Washington, D.C. office of Constantine Cannon LLP. Constantine Cannon represents Complainant Intermodal Motor Carriers Conference of the American Trucking Associations as well as non-party motor carriers in the above-captioned proceeding.
2. I am a member in good standing of the Bar of the District of Columbia and have made an appearance before the Federal Maritime Commission in this proceeding.
3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.
4. I submit this Declaration in support of Complainant IMCC's Motion to Strike Untimely Declarations and for Sanctions.

5. Attached hereto as **Exhibit 1** is a true and correct copy of excerpts of the deposition of James Reitzes, Ph.D., dated April 8, 2022.

6. Attached hereto as **Exhibit 2** is a true and correct copy of the Affidavit of James Langenfeld, Ph.D., dated June 13, 2022.

Respectfully submitted,

DATED: June 13, 2022

/s/ J. Wyatt Fore

J. Wyatt Fore

CONSTANTINE CANNON LLP
1001 Pennsylvania Avenue, NW
Suite 1300 N
Washington, DC 20004
Phone: 202-204-3500
wfore@constantinecannon.com

Exhibit 1

BEFORE THE FEDERAL MARITIME COMMISSION

- - - - - x

INTERMODAL MOTOR CARRIERS CONFERENCE,

AMERICAN TRUCKING ASSOCIATION, INC.,

Complainant,

- against - Docket No. 20-14

OCEAN CARRIER EQUIPMENT MANAGEMENT

ASSOCIATION, INC.; CONSOLIDATED CHASSIS

MANAGEMENT, LLC; CMA CGM S.A.; COSCO

SHIPPING LINES CO. LTD.; EVERGREEN LINE

JOINT SERVICE AGREEMENT, FMC NO. 011982;

HAPAG-LLOYD AG; HMM, CO. LTD.; MAERSK A/S;

MSC MEDITERRANEAN SHIPPING COMPANY S.A.;

OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI

LINE LTD.; YANG MING MARINE TRANSPORT CORP.;

AND ZIM INTEGRATED SHIPPING SERVICES,

Respondents.

- - - - - x

April 8, 2022

9:30 a.m.

CONFIDENTIAL REMOTE DEPOSITION of

JAMES REITZES, Ph.D., held remotely, taken before

Sharon Pearce, RDR, CRR, CRC, NYRCR, a

Registered Diplomat Reporter, Certified

Realtime Reporter, Certified Realtime Captioner,

and Notary Public of the State of New York,

pursuant to the Federal Rules of Civil Procedure,

with written notice as to time and place thereof.

* * * *

Public Version - Confidential Materials Excluded.

Public Version - Confidential Materials Excluded.

Public Version - Confidential Materials Excluded.

Public Version - Confidential Materials Excluded.

Exhibit 2

Public Version - Confidential Materials Excluded.

Public Version - Confidential Materials Excluded.

Public Version - Confidential Materials Excluded.

Public Version - Confidential Materials Excluded.